

Court No. - 40

Case :- WRIT - C No. - 611 of 2023

Petitioner :- Sanjay Mishra

Respondent :- State Of U P And 2 Others

Counsel for Petitioner :- Hriday Narayan Pandey, In Person

Counsel for Respondent :- C.S.C., Narendra Kumar Tiwari

Hon'ble Mahesh Chandra Tripathi, J.

Hon'ble Vivek Kumar Singh, J.

Heard the petitioner in person who is a practising Advocate of this Court. At present, he is suffering from the chronic disease Cancer and his treatment is going on at TATA Memorial Hospital, Mumbai. He has already incurred a huge expense of approximately 30 lakhs towards the said treatment. As such, it is submitted that he is suffering with irreparable loss on account of his illness and on the other hand on account of apathy shown by the respondent-Electricity Department, wherein, admittedly wrong electricity bills of more than Rs. 4000/- per month have been sent continuously. In this regard, the petitioner has already given an application dated 27.11.2018 for the inspection of the electricity meter and exchange the same by fixing new meter but no steps have been taken by the respondent no. 3 till date. It has also been claimed that the petitioner has represented the respondent authorities again by an application dated 19.9.2022 to change the electricity meter and to permit him to deposit the due bill in easy installments, which is still pending for consideration. Lastly, it has been contended that in case the respondent authorities take a recourse under Section 5.6 of the U.P. Electricity Supply Code 2005 and provides the correct bill then the same would be deposited within stipulated time.

On the other hand, Sri N.K.Tiwari, learned counsel for the respondent-Electricity Department fairly submits that all remedial measures would be taken in terms of the U.P. Electricity Supply Code 2005 expeditiously.

Considering the facts and circumstances, as the petitioner has already represented through representation dated 19.9.2022, we direct the second respondent to take remedial measures as per U.P. Electricity Supply Code 2005, expeditiously and preferably within a period of six weeks from the date of production of a certified copy of this order before him.

Order Date :- 31.1.2023

A.K.Srivastava